

56	Karimi vs. Benson 24-01438642	1. Demurrer to Amended Cross-Complaint 2. Demurrer to Amended Cross-Complaint 3. Demurrer to Amended Cross-Complaint 4. Joinder 5. Joinder 6. Motion to Strike Portions Of Cross-Complaint Cross-Defendants Ebrahim Karimi and Maryam Karimi’s demurrer to the First Amended Cross-Complaint is SUSTAINED with leave to amend. Cross-Defendants Ebrahim Karimi and Maryam Karimi’s request for judicial notice of Exhibits A through G is GRANTED. (Evid. Code, § 452, subd. (d).) Cross-Defendants Coldwell Banker Realty and Frank Del Rio’s demurrer to the First Amended Cross-Complaint is SUSTAINED with leave to amend. The joinder in the demurrer by Cross-Defendants Erik Messinger and Golden Ticket Real Estate, Inc., dba Keller Williams Realty, is GRANTED. Cross-Defendants Coldwell Banker Realty and Frank Del Rio’s motion to strike, and the joinder by Cross-Defendants Ebrahim Karimi and Maryam Karimi, are DEEMED MOOT. Cross-Defendants Coldwell Banker Realty and Frank Del Rio’s request for judicial notice of Exhibits A through G is GRANTED. (Evid. Code, § 452, subd. (d).) Cross-Defendants West Coast Escrow Company, Eva Ayala and Paula D. Vinnedge’s demurrer to the First Amended Cross-Complaint is SUSTAINED with leave to amend. Cross-Defendants West Coast Escrow Company, Eva Ayala, and Paula D. Vinnedge’s request for judicial notice of Exhibits 1 through 6 is GRANTED. (Evid. Code, § 452, subd. (d).) <i>Because the demurrers raise substantially overlapping issues, the Court addresses the common grounds together.</i> Cross-Defendants Ebrahim Karimi and Maryam Karimi (collectively, the “Karimis”) demur to the First Amended Cross-Complaint (“FAXC”) on the grounds that: (1) the claims are barred by res judicata and collateral estoppel based on the prior 2022 action; (2) the same claims are being pursued in a pending federal action; (3) the Court lacks subject matter jurisdiction over certain federal claims; and (4) each cause of action fails to state sufficient facts against the Karimis and is otherwise uncertain or inadequately pleaded.
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	to be precluded was actually litigated and necessarily decided. (<i>Lucido v. Superior Court</i> (1990) 51 Cal.3d 335, 341.) Claim preclusion may be raised on demurrer when the relevant facts appear from the pleading or matters subject to judicial notice. (<i>Carroll v. Puritan Leasing Co.</i> (1978) 77 Cal.App.3d 481, 485.) Where, however, the prior judgment followed the sustaining of a general demurrer, the judgment does not have the same broad preclusive effect as a judgment following a trial on the merits. (See <i>Keidatz v. Albany</i> (1952) 39 Cal.2d 826, 828–830.) A judgment entered after the sustaining of a general demurrer is “on the merits” only to the extent it determines that the facts alleged fail to state a cause of action and therefore bars a subsequent action alleging the same facts. (<i>Id.</i> at p. 828.) Even where different facts are alleged, the prior judgment is also a bar if the ground upon which the prior demurrer was sustained remains equally applicable to the second action. (<i>Ibid.</i>) Conversely, if the subsequent pleading alleges new or additional facts curing the former defect, the prior judgment is not a bar, even if the plaintiff previously had an opportunity to amend. (<i>Ibid.</i>) A judgment based merely upon technical or formal pleading defects is not an adjudication on the merits. (<i>Goddard v. Security Title Ins. & Guar. Co.</i> (1939) 14 Cal.2d 47, 52.) The judicially noticed records demonstrate that Cross-Complainant David Benson (“Benson”) previously sued the Cross-Defendants in Orange County Superior Court in 2022 concerning the same property and the same allegedly unauthorized transfer at issue in the FAXC. (Karimis’ RJN, Ex. A [Complaint, ¶¶ 7–11]; Escrow Defendants’ RJN, Ex. 1 [Complaint, ¶¶ 7–11].) In that action, Benson alleged that he made a handwritten notation on the Grant Deed limiting or delaying the sale, that he later elected not to proceed, and that the sale nevertheless closed. (<i>Id.</i>, ¶¶ 15–18.) He further alleged that Vinnedge altered the Grant Deed by removing the notation and attachment and that Ayala improperly added the notary statement after the alleged signing. (<i>Id.</i>, ¶¶ 18–19.) Benson sought an order restoring legal title and possession of the property to him and declaring that the Cross-Defendants had no right, title, or interest in the property. (<i>Id.</i>, ¶¶ 23–25.) The FAXC is based on substantially the same alleged injury. Benson again alleges that he signed the Grant Deed subject to written limitations, that Vinnedge removed the reference to “Attachment (A),” altered the deed, and improperly used Ayala’s notary information, resulting in the allegedly unauthorized transfer of the property. (FAXC, ¶¶ 23–29.) Although Benson now asserts additional causes of action, including fraud, racketeering, identity theft, title theft, conversion, cancellation of instruments, and unfair business practices, those claims largely arise from the same alleged injury: the transfer and loss of the subject property through the allegedly forged or altered Grant Deed. (FAXC, ¶¶ 44–70, 87–91, 112–135.)
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		The same-party requirement is also satisfied. Benson and each of the present Cross-Defendants were named as parties in the 2022 action. The judicially noticed records reflect different procedural dispositions as to the various Cross-Defendants. The Court sustained with 21 days' leave to amend the demurrers of West Coast Escrow Company, Eva Ayala, and Paula D. Vinnedge, and of Erik Messinger and Golden Ticket Real Estate, Inc., dba Keller Williams Realty. (Escrow Defendants' RJN, Ex. 3.) The Court determined that Benson failed to state a quiet title claim against those defendants because he did not allege that they asserted an adverse claim to title to the subject property. (Ibid.) Benson did not amend within the time permitted. On April 4, 2023, the Court granted their applications to dismiss pursuant to Code of Civil Procedure section 581, subdivision (f)(2). (Escrow Defendants' RJN, Ex. 4.) Judgment of dismissal was thereafter entered in favor of West Coast Escrow Company, Ayala, Vinnedge, Messinger, and Golden Ticket Real Estate, Inc., dba Keller Williams Realty, and against Benson. (Escrow Defendants' RJN, Ex. 5.) The Court also sustained the demurrer of the Coldwell Defendants with 21 days' leave to amend. (Coldwell Defendants' RJN, Ex. B.) As with the Escrow and Keller Williams Defendants, the Court determined that Benson failed to state a quiet title claim because he did not allege that the Coldwell Defendants asserted an adverse claim to title to the property. (Ibid.) Benson did not amend within the time permitted. The Court thereafter granted the Coldwell Defendants' application to dismiss pursuant to Code of Civil Procedure section 581, subdivision (f)(2). (Coldwell Defendants' RJN, Ex. C.) Judgment of dismissal was thereafter entered in favor of Frank Del Rio and Coldwell Banker Residential Brokerage Company dba Coldwell Banker Realty and against Benson. (Coldwell Defendants' RJN, Ex. D.) The Court also sustained the Karimis' demurrer with 21 days' leave to amend. (Karimis' RJN, Ex. B.) The Court determined from the deeds attached to Benson's complaint that Benson did not hold title to the property in his individual capacity, but rather held title as trustee of the David Benson Revocable Living Trust, and therefore concluded that Benson had not established his individual standing to maintain the quiet title claim. (Karimis' RJN, Ex. B.) Benson failed to amend within the time allowed. The Court thereafter dismissed the complaint against the Karimis with prejudice on June 23, 2023. (Karimis' RJN, Ex. C.) Thereafter, judgment of dismissal was entered in their favor. (Karimis' RJN, Ex. D.) The FAXC does not allege new facts curing the defects previously noted. The FAXC again relies on substantially the same operative facts concerning the alleged alteration and improper notarization of the Grant
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		Deed and the resulting unauthorized transfer of the subject property. It also again alleges that Benson personally was the “lawful owner” of the subject property and seeks relief on his own behalf. (FAXC, ¶ 9.) At the same time, the Grant Deed that Benson identifies as the allegedly forged instrument reflects that the grantor was “David Benson, Trustee of David Benson Revocable Living Trust.” (FAXC, ¶ 27 & Ex. E.) Accordingly, the defects identified in the prior action remain applicable to the present pleading as to the property-related claims. Therefore, to the extent the property-related causes of action identified below repeat substantially the same operative facts without new or additional allegations curing the prior pleading defects, the prior judgments are preclusive. Benson argues in opposition that claim preclusion does not apply because the Grant Deed was allegedly forged and is therefore void, rendering the transfer to the Karimis null and subject to collateral attack. (Opp., pp. 7–9.) The FAXC likewise alleges that the Grant Deed is “void ab initio” and seeks a judicial determination cancelling the instrument. (FAXC, ¶¶ 113–115.) That argument does not establish that the prior judgments themselves were void. The alleged invalidity of the Grant Deed is distinct from the validity of the prior judgments, and the judicially noticed record shows that Benson already alleged alteration and improper notarization in the prior action. (Karimis’ RJN, Ex. A [Complaint, ¶¶ 18–19]; Escrow Defendants’ RJN, Ex. 1 [Complaint, ¶¶ 18–19].) Thus, the prior judgments are preclusive as to the causes of action that seek relief for Benson’s alleged loss of the property through the 2022 Grant Deed. Specifically, the first cause of action for declaratory relief, second cause of action for fraud, third cause of action for racketeering, fourth cause of action for identity theft, fifth cause of action for title theft, eighth cause of action for conversion, eleventh cause of action for “inter-commerce fraud,” and twelfth cause of action for cancellation of instruments are based on the allegedly forged or altered Grant Deed and the resulting transfer or loss of Benson’s claimed property rights. These causes of action arise from substantially the same facts alleged in the 2022 action and, as to the Karimis, additionally remain subject to the same uncured standing/real-party-in-interest defect identified in their prior demurrer. Accordingly, the demurrers are SUSTAINED as to the first, second, third, fourth, fifth, eighth, eleventh, and twelfth causes of action on claim-preclusion grounds. Because claim preclusion is dispositive as to these causes of action, the Court need not separately address collateral estoppel. B. Another Action Pending
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		Code of Civil Procedure section 430.10, subdivision (c) permits a demurrer where “[t]here is another action pending between the same parties on the same cause of action.” However, the statute applies only when the other action is pending in a California state court. It does not apply where the competing action is pending in federal court. (<i>Gregg v. Superior Court</i> (1987) 194 Cal.App.3d 134, 136.) In such cases, however, California courts may refuse to entertain the later action on general principles of comity. But a stay on this ground is discretionary, not mandatory. (<i>Thomson v. Continental Ins. Co.</i> (1967) 66 Cal.2d 738, 746-747; <i>Caiafa Professional Law Corp. v. State Farm Fire & Cas. Co.</i> (1993) 15 Cal.App.4th 800, 804.) The appropriate procedure is a motion to stay or dismiss on forum non conveniens grounds. (Code Civ Proc., §§ 410.30, 418.10). (<i>Leadford v. Leadford</i> (1992) 6 Cal.App.4th 571, 575.) Here, the judicially noticed records show that Benson filed an action in the United States District Court for the Central District of California on April 3, 2025, and filed a First Amended Complaint in that action on May 29, 2025. (Karimis’ RJN, Exs. E, F.) Even assuming the two actions are substantially identical, the other action is pending in federal court. Accordingly, Code of Civil Procedure section 430.10(c) does not provide a basis for sustaining the demurrer. The demurrers on this ground are OVERRULED. C. Subject Matter Jurisdiction Cross-Defendants contend that certain federal causes of action fall within the exclusive jurisdiction of the federal courts. However, state courts have concurrent jurisdiction over RICO claims. (<i>Cianci v. Superior Court</i> (1985) 40 Cal.3d 903, 908.) The FDCPA likewise permits an action to be brought in an appropriate federal district court “or in any other court of competent jurisdiction.” (15 U.S.C. § 1692k(d).) Accordingly, those claims do not deprive this Court of subject matter jurisdiction. Thus, the demurrers on this ground are OVERRULED. D. Failure to State Facts Sufficient <u>First, Second, Third, Fifth, Eighth, and Twelfth Causes of Action:</u> The standing/real-party-in-interest defect provides an additional and independent basis for sustaining the demurrer to the first, second, third, fifth, eighth, and twelfth causes of action. Those claims seek relief for the alleged wrongful transfer, loss, conversion, or impairment of rights in the subject property. The Grant Deed attached to and incorporated into the FAXC as Exhibit E identifies the grantor as “David Benson, Trustee of David Benson Revocable Living Trust dated August 11, 2014,” rather than Benson in his individual capacity. (FAXC, Ex. E.) Benson has not alleged
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		facts establishing that he, individually, is the real party in interest entitled to recover for injury to the trust property. Accordingly, the demurrers to the first, second, third, fifth, eighth, and twelfth causes of action are SUSTAINED with leave to amend. <u>Sixth and Seventh Causes of Action for FDCPA and Rosenthal Act</u> The Fair Debt Collection Practices Act (“FDCPA”) applies to efforts by a “debt collector” to collect a consumer “debt.” (15 U.S.C. § 1692a(5), (6).) A “debt collector” generally includes a person whose principal business is debt collection or who regularly collects or attempts to collect debts owed to another. (15 U.S.C. § 1692a(6).) The Rosenthal Act is broader and defines a “debt collector” as a person who, in the ordinary course of business, regularly engages in debt collection on behalf of that person or others. (Civ. Code, § 1788.2(c).) The FAXC alleges that Cross-Defendants are debt collectors attempting to collect a consumer debt and that they failed to validate the debt and continued collection activity. (FAXC, ¶¶ 72–85.) These allegations, however, are conclusory. The FAXC does not allege facts showing that Cross-Defendants’ principal business is debt collection or that they regularly engage in debt collection, that they attempted to collect a debt owed by Benson, or that they communicated with Benson for the purpose of collecting a debt. The allegations are therefore insufficient to state a claim under either statute. Accordingly, the demurrers to the sixth and seventh causes of action are SUSTAINED with leave to amend. <u>Ninth Cause of Action for Penal Code § 496(c):</u> The California Supreme Court explained: “Section 496, subdivision (a) (section 496(a)) defines the criminal offense of what is commonly referred to as receiving stolen property. As amended in 1972 [citation], it provides in relevant part: ‘Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained,’ is subject to incarceration. [¶] Section 496[, subdivision] (c), similar to some provisions in other statutory schemes, articulates a right to special civil remedies when a violation of section 496(a) has occurred. Subdivision (c), as also amended in 1972, states that any person who has been injured by a violation of section 496(a) ‘may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney’s
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		fees.’ ” (<i>Siry Investment, L.P. v. Farkhondehpour</i> (2022) 13 Cal.5th 333, 346–347, fns. omitted.) The FAXC alleges that Benson made unspecified “payments to Cross-Defendants” that were “withheld, siphoned, and embezzled.” (FAXC, ¶ 96.) It does not identify what payments were made, to whom they were made, or how they were made under false pretenses. Nor does it allege facts showing that Cross-Defendants received or possessed property obtained by theft, knew that the property was stolen or so obtained, or unlawfully withheld or concealed it. These conclusory allegations do not state a claim under section 496. The demurrers to the ninth cause of action are SUSTAINED with leave to amend. <u>Tenth Cause of Action for Quantum Meruit</u> The requisite elements of quantum meruit are (1) the plaintiff acted pursuant to “an explicit or implicit request for the services” by the defendant, and (2) the services conferred a benefit on the defendant. (<i>Day v. Alta Bates Medical Center</i> (2002) 98 Cal.App.4th 243, 249.) The FAXC alleges that Cross-Defendants failed to return or reimburse Benson’s money and were unjustly enriched. (FAXC, ¶¶ 99–106.) It does not allege that Benson performed any services for Cross-Defendants, that Cross-Defendants requested or accepted any such services, or that Benson otherwise conferred a benefit on them. The allegations therefore do not state a claim for quantum meruit. The demurrers to the tenth cause of action are SUSTAINED with leave to amend. <u>Thirteenth Cause of Action for Unfair Business Practices</u> “The UCL prohibits, and provides civil remedies for, unfair competition, which it defines as ‘any unlawful, unfair or fraudulent business act or practice.’ [Citation.] Its purpose ‘is to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services.’ ” (<i>Kwikset Corp. v. Superior Court</i> (2011) 51 Cal.4th 310, 320, 120.) The law is broad and sweeping, embracing anything that can properly be called a business practice and that at the same time is forbidden by law. (<i>Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.</i> (1999) 20 Cal.4th 163, 180.) A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation. (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal. App. 4th 612, 619.)
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		The FAXC identifies numerous statutes as predicates for the UCL claim and generally alleges that Cross-Defendants engaged in unlawful or unfair practices. (FAXC, ¶¶ 125–127.) It further alleges collectively that “Defendants” forged Benson’s signature and used Ayala’s notary seal. (FAXC, ¶¶ 128–131.) The FAXC does not allege sufficient facts establishing a violation of the statutes identified as predicates for the UCL claim. Because an “unlawful” UCL claim depends on an adequately pleaded violation of another law, the mere listing of statutes without facts establishing their violation is insufficient. The demurrers to the thirteenth cause of action are SUSTAINED with leave to amend. Because the demurrers are sustained in their entirety, the motion to strike and related joinder are DEEMED MOOT. Should Cross-Complainant wish to file an amended cross-complaint that addresses the issues identified in this ruling, Cross-Complainant must file and serve it within 15 days after service of notice of this ruling. Moving Cross-Defendants to give notice.